

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-xaiz-odrc
Comments Due: March 15, 2025
Submission Type: Web

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-4299

Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

I am a classical composer who frequently sets existing poetry and other text to music, and as such I've had to become familiar with the intricacies of copyright law. Fair use as a doctrine is interpreted very narrowly for artists. As an example, I recently paid \$350 for the rights to set three Emily Dickinson poems to music. Dickinson is long dead, and my works do not steal money from her pockets. I also cannot imagine a circumstance where someone looking to read her poetry would purchase sheet music from me, a relatively unknown composer, in lieu of purchasing a book from the publisher who owns the rights. However, not seeking permission for this poetry would have put me in direct violation of U.S. copyright law.

AI owned by large corporations has taken the works of Dickinson, and huge numbers of other authors and artists (many alive and dependent on art for their income), with no permission or pay, and uploaded copies of them to its databases as training material. Its direct, stated goal is to use the copyrighted works of others as the material to create more works that will directly compete with those in its training materials. The makers of AI want to use living creatives' artworks to make their jobs and creations obsolete. How is this a fair use of the material? How does it not actively, intentionally, and maliciously infringe on copyright? Why should there be one rule for living artists, and another for corporations and machines?